

Court No. - 39

Case :- WRIT - C No. - 1639 of 2019

Petitioner :- M/S Modi Nagar Paper Mills Ltd And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Rohan Gupta

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Rohan Gupta, learned counsel for the petitioner, learned Standing Counsel for the respondent no.4 and Sri Chandan Agrawal, learned counsel for the respondents no. 1, 2 and 3.

The petitioner in the writ petition is seeking quashing of the demand notice dated 3.01.2019 whereby a sum of Rs. 1,97,34,832/- is sought to be recovered from the petitioner towards arrears of electricity dues.

The petitioner has a remedy of approaching the Executive Engineer under Para 6.14 of the Electricity Supply Code, 2005 to have instalments fixed. Sri Chandan Agarwal, learned counsel for the respondents states that the petitioner was earlier granted instalments but he could not clear the arrears of dues within the time granted by the Executive Engineer.

Be that as it may, we **dispose of** this writ petition with a direction that if the petitioner appears before the Respondent no. 2-Executive Engineer (Distribution), Paschimanchal Vidyut Vitaran Nigam Ltd., Ghaziabad (UP) on **31.1.2019 at 11.00 AM** along with his representation and a certified copy of this order, the Respondent no.2 shall consider the same and after granting the petitioner an opportunity of hearing decide the said representation, in accordance with law, within a further period of 15 days. It will be open for the Respondent no.2 to grant the petitioner further instalments as may be permissible in law.

It is made clear that the Court has not adjudicated the claim of the petitioner on merit.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned demand notice dated 3.01.2019 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.2.

Order Date :- 18.1.2019

Kirti